Print and File Instructions
Small Claims: Plaintiff

1. Sign and make copies.

Sign and date the forms. If there are two Plaintiffs, both Plaintiffs must sign the forms. Then make at least 2 copies: 1 for you and 1 for each Defendant.

2. File with the court.

Take only the forms and copies listed below to the clerk at the court to file:

- ☐ *Summons*
- ☐ *Claim*
- ☐ (Ada County only) *Affidavit of Competence and Non-Military Service*
  - ➢ If you have Certificate(s) from the Servicemembers' website, write "Exhibit A" at the bottom and staple them to the *Affidavit*.

Pay the $69.00 filing fee. The clerk will issue the *Summons* and return your copies to you.

3. Serve each Defendant.

Have someone else give each Defendant a copy of:

- ☐ *Summons,*
- ☐ *Claim,*
- ☐ (Ada County only) *Affidavit of Competence and Non-Military Service,*
- ☐ *Information for Defendant*, and
- ☐ *Answer* (blank).

How can I serve the forms?

- Pay the county Sheriff or Marshal,
- Pay a professional process server,
- Ask a person 18 years old or older who is not involved in the case, or
- Pay the clerk (for certified mail).

- ➢ Have your server fill out and sign an *Affidavit of Service* for each Defendant.
- ➢ File the *Affidavit of Service* form(s) with the court.

For more information, see How to Serve Your Small Claims Papers.

4. Check your mail.

A. If the Defendant files an *Answer* within 21 days, the clerk will schedule your case for a contested claim hearing and send you and the Defendant a *Notice* with the date and time of the trial.

B. If the Defendant does not file an *Answer* within 21 days, either the clerk will send you a *Notice* with the date and time of your trial, or you may need to file an *Affidavit for Default*.

- ➢ Return to Guide & File and choose ***Affidavit of Service or Default***.
- ➢ Print and file your documents with the court.
- ➢ Send a copy of the forms you file to all parties.

A judge will review your claim and evidence to determine whether a trial is necessary or whether you have provided enough proof and required information to win your case.

If you win your case, the clerk will send or give you a copy of the *Default Judgment* so that you can collect any money and property you were awarded.

If a trial is scheduled:

5. File any requests, if needed, before the trial.

You can dismiss the case, request to reschedule your trial or request a phone hearing:

- ➢ Return to Guide & File and choose **Reschedule, Dismiss, Change Venue, Request Phone Hearing.**
- ➢ Print and file your documents with the court.

For a Dismissal: The court clerk will send you a copy of the filed *Dismissal*.

- ➢ Send a copy of the filed *Dismissal* you receive back from the clerk to all parties.

For a Request: The Judge's decision on your request will be in the *Order* form. If you do not hear back before your trial date or if your request is denied, you will need to attend your hearing as scheduled.

- Send a copy of the forms you file to all parties.

6. Go to court for the trial.

When you go to court, if you haven't already filed them, take with you the completed:

☐ *Affidavit of Service* form(s)
☐ *Affidavit of Non-Military Service*
☐ *Judgment*

Bring any evidence you have with you to prove your case. For example:

- Contracts or other documents
- Receipts or cancelled checks
- Invoices or statements
- Photos

You can also bring witnesses or statements signed by expert witnesses.

For more information, see Get Ready for Your Small Claims Trial – Plaintiff.

If you win:

7. Collect on your *Judgment.*

See How to Collect Your Small Claims Judgment for collection options and detailed instructions.

- Return to Guide & File and choose **Enforce the Judgment**.
- Print and file your documents with the court.

8. File the *Satisfaction*.

Once the Defendant has paid any amount and returned any property listed in the *Judgment*, file the *Satisfaction of Judgment*.

- Return to Guide & File and choose ***Satisfaction of Judgment***.
- Print and file your documents with the court.
- Send a copy of the forms you file to all parties.

If you do not agree with the court's decision:

You can appeal the *Judgment*. The *Appeal* must be filed at the court **within 30 days** of the judgment date.

- Return to Guide & File and choose ***Appeal***.
- Print and file your documents with the court.
- Send a copy of the forms you file to all parties.

The clerk will send you a *Notice* with your new hearing date and time with a different judge. At the hearing, the case will be treated like a new case. You will need to bring your evidence to prove your case again. The new hearing is more formal: you and the other party can have lawyers and the rules of civil procedure and evidence apply. If you have questions, talk with a lawyer.

If your case was dismissed:

If you had a good reason why you could not attend the hearing, you can ask the court to set aside the dismissal and schedule a hearing.

- Return to Guide & File and choose **Set Aside Default/Dismissal**.
- Print and file your documents with the court.
- Send a copy of the forms you file to all parties.

The judge will review your *Motion to Set Aside Dismissal.*

A. If the judge denies your motion, the clerk will send you the *Order* form with the box checked that says the motion was denied.

B. If the judge grants your motion, the clerk will send you an *Order* and a *Notice* with your new hearing date and time. Be sure to bring any evidence to prove your case.

C. If the judge schedules a hearing on your motion, the clerk will send you a *Notice* with the date and time of the hearing. At the hearing, if the judge grants your motion, the judge will immediately start the hearing for your case. Be sure to bring any evidence to prove your case. For additional information on what to expect in court, see Get Ready for Your Small Claims Trial – Plaintiff.

How to Serve Your Small Claims Papers

The Defendant **must** be served (given) a copy of all the papers you file in Small Claims Court. If there is more than one Defendant in your case, each one must be served separately – even if they are married or living together.

After you serve the Defendant you must file an *Affidavit of Service* with the Court. In most cases the deadline to serve and file this *Affidavit* is **30 days. Some courts allow** up to **90 days** after you file your *Claim*. Ask the clerk about your deadline.

To serve the Defendant follow these steps:

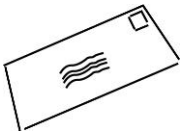
① Fill out the header in the *Affidavit of Service* form.

You can get the form from the Court Clerk or online at: courtselfhelp.idaho.gov/small-claims.

② Have someone 18 or older – not you – serve the Defendant.

Each Defendant must be served (given) a copy of these forms: *Summons, Small Claim, Answer* (Blank), *Instructions for Defendant.* The Defendant can be served by **mail** or **personal** delivery.

➢ For U.S. **Certified mail** service



If you pay a fee, the Clerk can have the Defendant served by certified mail, return receipt.

Warning! If the Defendant refuses to sign the return receipt or if someone who is not the Defendant signs, you will have to serve the Defendant again, using personal service. If this happens, the Clerk will notify you.

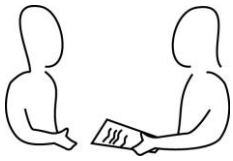
➢ For **personal** service, choose **1** of these options:

☐ Pay the **Sheriff's office** (or the Marshal's office for some counties) to serve the papers. You must tell them exactly where to find the Defendant. The Sheriff or Marshal will give you the *Affidavit of Service*.

In some counties, you pay the Court Clerk and the Sheriff or Marshal gives the *Affidavit of Service* to the Clerk. Ask the Clerk how it works in your county.

☐ Pay a professional **process server**. You must:

- Give the server a copy of your court forms.
- Explain exactly where to find the Defendant.



If you do not know where the Defendant can be found, some process servers will investigate for you, for a fee.

☐ **Ask someone 18 or older** – not **you** or anyone else involved in this case – to personally give each Defendant a copy of your court papers.

③ File the *Affidavit of Service*

After serving, ask the server to fill out the *Affidavit of Service* form and return it to you. Then you must file the *Affidavit of Service* with the Clerk, or you can file it at your trial.

If you miss your deadline to file the *Affidavit of Service*, or if you serve incorrectly, you can file your claim again if you are within the statute of limitations for your claim. If you file again within 6 months of filing your first claim, you may not have to pay another filing fee.

Get Ready for Your Small Claims Trial - Plaintiff

Arrive early!

Look for the date and time of your trial on your *Notice*. You may need extra time to get through security and find your courtroom.

Check in with the Clerk.

In some counties, the court will order you and the other side to talk to a mediator. The mediator will try to help you settle the case without going to trial.

Bring your forms with you.

- Turn your phone off. Remove your hat. No food, no gum, no drinks in the courtroom.
- Stay calm. Be polite. Do not interrupt anyone.
- Do not speak until the judge asks you to.
- If you do not understand something, say, "I don't understand."

Tip: Do not bring children unless they can sit quietly for a few hours.

Wait for the court to call your case.

The judge will ask you to speak first. This is your chance to show why you should win. Say the most important reasons that support your case.

Tip: It's OK to make notes about what you want to say. If you get nervous, just read from your notes.

Bring evidence.

Give the judge copies of your **proof** that supports your case, such as:

- Contracts or other documents
- Receipts or cancelled checks
- Invoices or statements
- Photos

***Tip*:** If you have an audio, video, or other recording, talk to the Clerk as soon as possible. Ask if you need to bring your own equipment.

You can bring witnesses or statements.

You may have a **witness** speak at your trial. If it's hard for the witness to go to court, ask the witness to write a statement.

If only an expert would know if your claim is correct, you may bring an **expert witness** (or their statement).

Listen while the Defendant explains his or her side of the case.

If the Defendant is at the trial, the Defendant may show evidence, bring witnesses or statements, and explain why you should not win your case.

After your trial, get your judgment.

The judge decides many cases at the end of the trial and gives you and the Defendant a copy of his/her decision (the *Judgment*). If the judge decides later, you will get the *Judgment* in the mail.

If you do not agree with the court's decision, you can appeal (fight the court's decision) if:

- You lose your case, or
- You win your case, but the court gives you less money than you asked for.

If you want to appeal, you have **30 days** after the date of the J*udgment* to file a *Notice of Appeal* with the Clerk. You will have to pay an **$81** filing fee. ***Warning!*** The 30-day deadline is very strict.

If the Defendant does not agree with the court's decision, s/he can also appeal. If this happens, the Clerk will send you a *Notice of Appeal*.

Note: Appeals are more formal than small claims process. The parties can have lawyers.

If you win, collect your *Judgment*.

If you win your case, the court will make a J*udgment* and order the Defendant to pay you or return property to you.

If the Defendant does not pay, the court will **not** collect it for you. But there are things you can do to get your money/property. See the brochure from the Clerk or online: *Collecting on Your Small Claims Judgment* (Under Small Claims here: courtselfhelp.idaho.gov/publications)

After the Defendant pays, file a form.

You **must** tell the court when the Defendant has paid the total *Judgment* by filing a *Satisfaction of Judgment* form. Get this form from the Clerk or online at: courtselfhelp.idaho.gov/small-claims

Warning! If you do not file this form, the court can order you to do it.

Questions?

- Visit the Court Assistance Office at your local county courthouse.
- Talk to a lawyer. The court **cannot** give legal advice.

_____
Full Name of Party Filing Document

_____
Mailing Address (Street or Post Office Box)

_____
City, State and Zip Code

_____
Telephone

_____
Email Address (if any)

IN THE DISTRICT COURT FOR THE _____ JUDICIAL DISTRICT
FOR THE STATE OF IDAHO, IN AND FOR THE COUNTY OF _____
SMALL CLAIMS DEPARTMENT

_____ _____, Plaintiff(s), vs. _____ _____, Defendant(s).	Case No. _____ ANSWER No Filing Fee

1. If the Defendant's name is not spelled correctly on the Plaintiff's Claim, or if the Defendant's address or phone number are not correct or are omitted on the Plaintiff's Claim, fill out this portion.

_____
Defendant's Name Address City State Zip Phone

_____
Defendant's Name Address City State Zip Phone

2. If the Plaintiff's claim asks for a judgment for money, fill out this portion.

   Do you agree that you owe money to the Plaintiff? ☐ Yes ☐ No

   If yes, how much do you agree that you owe? _____

   If you believe that you do not owe the Plaintiff the amount claimed or any money, state briefly why you do not owe the money.

   _____

   _____

   _____

   _____

   _____

3. If the Plaintiff's claim seeks the return of personal property, fill out this portion.

   Do you agree with the part of the Plaintiff's claim asking for the return of personal property? ☐ Yes ☐ No

   If not, state briefly why not.

   _____

   _____

   _____

   _____

   _____

BY SIGNING THIS ANSWER, THE DEFENDANT VERIFIES THAT the information above is true and correct to the Defendant's best knowledge.

CERTIFICATION UNDER PENALTY OF PERJURY

I certify under penalty of perjury pursuant to the law of the State of Idaho that the foregoing is true and correct.

Date: _____

_____ _____

Typed/printed name Signature

Favor de avisarnos antes de la fecha de la audiencia si usted necesitara un intérprete en la corte.

Small Claims – Information for Defendant

You have been sued. The person who sued you is the Plaintiff, you are the Defendant.

Do you agree that you owe the money or the property belongs to the Plaintiff?

Disagree

- **You must file an *Answer* with the court within 21 days** of receiving the *Claim*. The clerk will schedule a hearing where you can present your side of the case.

Agree

- **You do not have to file an *Answer*.**
- Pay the claim or return the property immediately.
- The Plaintiff can ask for a **Default Judgment* if no *Answer* is filed, and then ask the Sheriff to collect or recover property.

***Default Judgment**: The court can grant the Plaintiff everything in the *Claim* plus case costs if you, the Defendant, do not file an *Answer* by the deadline.

Fill out and file the forms.

① To file an *Answer*, choose one of the following options:

iCourt Guide & File

A. Complete & File Forms Online using Guide & File:

Guide & File is an easy to use online tool that prepares your forms and allows you to e-file your forms online, go to: http://guideandfile.idaho.gov.

B. E-File using File & Serve:

Alternatively, you can e-file using **File & Serve**; this may be easier if you routinely file a large volume of small claims cases. You can find it online here: https://idaho.tylerhost.net/ofsweb.

If you are a **business** filing the claim in a county where e-filing is available, you **must e-file** your documents.

C. Print and File in Person:

To print and fill out your forms go to: www.courtselfhelp.idaho.gov/small-claims or pick up a copy at your local courthouse. Sign and date the completed forms. Make at least two copies: 1 for you and 1 for each Plaintiff, and take them to the court where the Claim was filed.

② Attend the hearing.

The court clerk will schedule a trial in your case and send you and the Plaintiff a notice with the date and time. If you do not attend, the judge may grant the Plaintiff a *Default Judgment*, the same as if you hadn't filed an *Answer*. For more information on what to expect in court see *Get Ready for Your Small Claims Trial - Defendant.*

Small Claims

What if the Plaintiff owes me money or has my property?

To ask the judge to order the Plaintiff to return your money or property, you must file your own *Claim.*

Can the Plaintiff and I resolve the case?

Yes, you and the Plaintiff can try to settle the case at any time before the court enters a judgment.

If you reach an agreement it must be explained to the court so that the case can be dismissed or a judgment issued that says what you agreed on.

Can a lawyer represent me?

You cannot have a lawyer speak for you in small claims, but you can talk to a lawyer before and after your trial. If you were sued as a business, the owner or an employee can speak in court, as long as he or she is not a lawyer.

Can I reschedule my trial?

If you have an urgent reason to change the trial date, file a *Motion to Continue (Reschedule) Hearing* at least 2 weeks before your trial. You can prepare and e-file this form in Guide & File.

Can I get an interpreter?

Let the Clerk know if you or a witness needs help with English or has hearing problems. The Clerk can send a free interpreter to your trial.

What if the Plaintiff filed the case in the wrong county?

You can ask the court to change the venue (location) for the case by filing a *Motion to Change Venue*. You can prepare and e-file this form in Guide & File.

What if I miss the deadline for responding?

The Plaintiff can get a *default judgment*. You can ask the court to set aside a default judgment to allow you to respond. You can find the forms online at: www.courtselfhelp.idaho.gov/small-claims

Jeremy Bass

Full Name of Party Filing Document

1515 21st ave.

Mailing Address (Street or Post Office Box)

Lewiston, ID 83501

City, State and Zip Code

208-549-9584

Telephone

Email Address (if any)

IN THE DISTRICT COURT FOR THE **SECOND** JUDICIAL DISTRICT

FOR THE STATE OF IDAHO, IN AND FOR THE COUNTY OF **NEZ PERCE**

SMALL CLAIMS DEPARTMENT

Jeremy Bass

Plaintiff(s),

vs.

Sparklight

Defendant(s).

Case No. _____

AFFIDAVIT OF SERVICE OF:

☐ CLAIM
☐ SUMMONS
☐ ANSWER FORM
☐ INFORMATION FOR DEFENDANTS
☐ OTHER: _____

Note: Either use a separate form for each Defendant served, or include information on this form as to how each Defendant was served.

I, (name of server) _____, certify and state:

I am over the age of 18 years, and I am not a party to this case nor an employee of a party to this case.

On (date)_____, I served true and correct copies of the documents indicated above on (name of Defendant) _____ by (check all that apply):

☐ Personal delivery to (name of Defendant) _____

at (location where process served) _____

_____.

☐ Personal delivery at Defendant's usual place of residence, (address)

_____

_____,

to (name of person served)_____,

a person who is over the age of 18 and resides there.

☐ Personal delivery to _____,

the Defendant's authorized agent for service of process, at (location where served).

_____.

☐ I am charging the Plaintiff(s) $_____ for this service.

CERTIFICATION UNDER PENALTY OF PERJURY

I certify under penalty of perjury pursuant to the law of the State of Idaho that the foregoing is true and correct.

Date: _____

_____ _____

Typed/printed name Signature of Process Server

Jeremy Bass

Full Name of Party Filing Document

1515 21st ave.

Mailing Address (Street or Post Office Box)

Lewiston, ID 83501

City, State and Zip Code

208-549-9584

Telephone

Email Address (if any)

IN THE DISTRICT COURT FOR THE **SECOND** JUDICIAL DISTRICT
FOR THE STATE OF IDAHO, IN AND FOR THE COUNTY OF **NEZ PERCE**
SMALL CLAIMS DEPARTMENT

Jeremy Bass

Plaintiff(s),

Present: ☐ Yes ☐ No

vs.

Sparklight

Defendant(s).

Present: ☐ Yes ☐ No

Case No. _____

JUDGMENT

It appears from the court's file that service of process has been made upon the Defendant.

☐ Judgment is entered in favor of the Plaintiff on the claim in the amount of $_____ with costs in the amount of _____, for a total judgment of $_____.

☐ Judgment is entered in favor of the Plaintiff for recovery and possession of the following personal property which the Defendant is hereby ordered to return to the Plaintiff,

and for costs in the amount of _____.

After the Defendant has paid the money required by the judgment, and returns any personal property required by the judgment, the Defendant has satisfied the judgment. The Plaintiff is ordered to complete and file a Satisfaction of Judgment with the court clerk within 30 days after the judgment is satisfied.

☐ This is a default judgment.

☐ This judgment is based on the agreement of the parties.

☐ Judgment is entered in favor of the Defendant. The Plaintiff's claim is denied.

☐ The Plaintiff's claim is dismissed without prejudice.

☐ The Plaintiff's claim is dismissed with prejudice.

Date: _____ _____
Magistrate Judge

Received: _____ _____
Plaintiff Defendant

DISMISSAL BY PLAINTIFF

☐ The Plaintiff acknowledges full satisfaction of the claim, and dismisses the claim in this case.

☐ The Defendant has not filed an answer, and the Plaintiff dismisses the claim in this case without prejudice pursuant to I.R.C.P. 41(a)(1).

Date: _____ _____
Plaintiff

CERTIFICATE OF SERVICE

I certify that on this date I served a copy of the attached to:

Jeremy Bass
(Name)

1515 21st ave.
(Street or Post Office Address)

Lewiston, ID 83501
(City, State, and Zip Code)

☐ By mail
☐ By fax (number) _____
☐ By personal delivery
☐ By email to:
_____
(If allowed)

_____
(Name)

_____
(Street or Post Office Address)

_____
(City, State, and Zip Code)

☐ By mail
☐ By fax (number) _____
☐ By personal delivery
☐ By email to:
_____
(If allowed)

Sparklight
(Name)

2320 Nez Perce Grade
(Street or Post Office Address)

Lewiston, ID 83501
(City, State, and Zip Code)

☐ By mail
☐ By fax (number) _____
☐ By personal delivery
☐ By email to:
_____
(If allowed)

_____
(Name)

_____
(Street or Post Office Address)

_____
(City, State, and Zip Code)

☐ By mail
☐ By fax (number) _____
☐ By personal delivery
☐ By email to:
_____
(If allowed)

Dated: _____

By: _____
Deputy Clerk